

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

LEONID DUBINSKY,

Plaintiff,

-against-

POLICE OFFICER MATTHEW DELFAUS, Shield No.
16918 and SERGEANT AMERICA JACQUEZ-
VENTURA,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:

Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 27, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER MATTHEW DELFAUS, Shield No. 16918, 60th Precinct, 2951 W
8th St, Brooklyn, NY 11224
SERGEANT AMERICA JACQUEZ-VENTURA, 60th Precinct, 2951 W 8th St,
Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
LEONID DUBINSKY,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER MATTHEW DELFAUS, Shield No.
16918 and SERGEANT AMERICA JACQUEZ-
VENTURA,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, LEONID DUBINSKY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On November 28, 2015, at approximately 8:00 p.m., plaintiff, LEONID DUBINSKY, while lawfully inside of his apartment at 417 Bridgewater Court, Apt. 2F, Brooklyn, New York, subjected to excessive force by the defendant New York City police officers. Plaintiff was deprived of his constitutional rights when the individual defendants used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff LEONID DUBINSKY is a resident of the State of New York.

3. POLICE OFFICER MATTHEW DELFAUS, Shield No. 16918, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MATTHEW DELFAUS, Shield No. 16918, is and was at all times relevant herein, assigned to the 60th precinct.

5. POLICE OFFICER MATTHEW DELFAUS, Shield No. 16918, is being sued in his individual and official capacities.

6. SERGEANT AMERICA JACQUEZ-VENTURA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT AMERICA JACQUEZ-VENTURA, is and was at all times relevant herein, assigned to the 60th precinct.

8. SERGEANT AMERICA JACQUEZ-VENTURA, is being sued in her individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On November 28, 2015, at approximately 8:00 p.m., plaintiff was lawfully in inside of his apartment located at 417 Bridgewater Court, Apt. 2F, Brooklyn, New York.

15. Upon information and belief, the defendant NYPD officers did not believe that plaintiff posed a threat or danger to the defendant police officers.

16. No reasonable police officer would have believed that plaintiff posed a threat or danger to the defendant police officers.

17. Nevertheless, as plaintiff was lawfully inside of his apartment, the defendant police officers unlawfully entered plaintiff's apartment and forcibly threw him down to the ground and was forcibly handcuffed by the defendant police officers without provocation or legal justification.

18. As a result of being unlawfully thrown down to the ground, and forcibly handcuffed, plaintiff sustained serious physical injuries to his body, including but not limited to, a laceration over his left eyebrow and bruised ribs.

19. At no time did plaintiff verbally or physically threaten the defendant NYPD officers, and no reasonable police officer would believe that plaintiff verbally or physically threatened the defendant NYPD officers at any time.

20. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

21. Plaintiff was subjected to excessive force by the individual defendant police officers without cause or legal justification.

22. At no point did plaintiff resist arrest in any way.

23. Thereafter, plaintiff was handcuffed by the defendant police officers and was transported to the 60th precinct.

24. Thereafter, EMS was called to the 60th precinct and responded to the 60th precinct to treat plaintiff for the physical injuries inflicted by the defendant police officers.

25. EMS determined that plaintiff's injuries required further medical treatment and therefore plaintiff was transported via EMS to Coney Island Hospital.

26. Plaintiff received medical treatment for the physical injuries inflicted by the defendant police officers at Coney Island Hospital, including sutures to close the laceration above his left eyebrow.

27. On November 29, 2015, at approximately 12:30 a.m., plaintiff was discharged from the hospital and was transported back to the 60th precinct.

28. Thereafter, on November 29, 2015, plaintiff was transported to Brooklyn Central Booking.

29. While at Brooklyn Central Booking, plaintiff was still in pain from the injuries inflicted by the defendant police officers and EMS was summoned to transport him to Lutheran Hospital so he could receive further medical treatment.

30. Thereafter, plaintiff was discharged from Lutheran Hospital on November 30, 2015 and was transported back to Central Booking.

31. On or about November 30, 2015, plaintiff was arraigned in Brooklyn Criminal Court.

32. None of the individually named defendants intervened to prevent or stop the use of excessive force against plaintiff or prevent further injury to plaintiff.

33. By failing to intervene in order to stop the use of excessive force, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

34. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff suffered significant and permanent physical injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The use of excessive force by defendants throwing him down to the ground and tightly handcuffing plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

37. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Failure to Intervene

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

40. Defendants failed to intervene to prevent the unlawful conduct described herein.

41. As a result of the foregoing, plaintiff was brutally physically assaulted.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

43. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff LEONID DUBINSKY demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 27, 2018

By: /s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER MATTHEW DELFAUS, Shield No. 16918, 60th Precinct, 2951 W 8th St, Brooklyn, NY 11224
SERGEANT AMERICA JACQUEZ-VENTURA, 60th Precinct, 2951 W 8th St, Brooklyn, NY 11224

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 27, 2018

_____/s/_____
STUART E. JACOBS